

TERMS OF SERVICE

Last Updated: 11 August 2026

These Terms of Service (“Terms”) govern the provision of software development, technology, hosting, maintenance and related services by **Zen Consulting** (“Zen”, “we”, “us” or “our”) to the person or entity purchasing or receiving those services (“Client”, “you” or “your”).

Zen Consulting is currently operated as an unincorporated business from Pune, Maharashtra, India. Zen provides services to clients internationally.

These Terms are intended to establish the general contractual framework for Zen’s services. The specific scope, commercial terms and requirements of an engagement will be set out in a quotation, proposal, Statement of Work, subscription agreement, project agreement, order form or other written agreement accepted by the parties (each, a “Project Agreement”).

By accepting a Project Agreement, signing an agreement incorporating these Terms, expressly accepting these Terms electronically, paying an invoice following receipt of these Terms, or otherwise commencing an engagement after being provided with these Terms, the Client agrees to the applicable Project Agreement and these Terms.

If there is a conflict between these Terms and a Project Agreement, the Project Agreement will prevail to the extent of the conflict. Any provision of a Project Agreement intended to apply specifically to the relevant engagement will take precedence over the corresponding general provision of these Terms.

1. Services

Zen provides custom software and technology services based on the requirements of each Client. Depending on the engagement, these services may include the design and development of websites, web applications, mobile applications, internal business systems, software replacements, integrations, automation, artificial-intelligence functionality, technical consulting, bug fixing, hosting, monitoring, maintenance, security updates, backups, recovery assistance and continuing development.

Zen may provide its services through different commercial arrangements, including a monthly subscription, an ongoing engineering or development arrangement, a fixed-price one-time project, consulting engagement, maintenance arrangement, or another structure agreed in writing.

Zen's public plans, including its Essential, Growth and Partner offerings, describe typical service structures rather than fixed contractual promises. The actual scope, number of concurrent builds, response expectations, hosting arrangements, development capacity and other features included in a Client's plan will be determined by the applicable Project Agreement.

References on Zen's website to typical build periods, first working versions, response times, uptime, included changes or similar performance information are indicative unless expressly incorporated into the applicable Project Agreement.

Zen will determine the technical methods, architecture, development tools and implementation approach used to perform the Services unless the Project Agreement expressly requires otherwise. Zen may make reasonable technical changes where necessary to maintain security, compatibility, performance, reliability or maintainability.

Zen is not required to accept a project merely because a service is advertised. Zen may decline a proposed engagement where it reasonably considers the work to be unlawful, unsafe, fraudulent, materially security-sensitive, subject to regulatory obligations that cannot reasonably be accommodated, or otherwise creates an unacceptable legal, technical or operational risk.

2. Project Scope, Development and Changes

Each engagement will be performed according to its agreed scope. A Project Agreement may specify the Deliverables, functionality, integrations, fees, timelines, hosting arrangements, maintenance services, acceptance requirements, Intellectual Property Rights, service levels and other terms applicable to that engagement.

Software development is inherently iterative. Unless a date is expressly identified as a binding contractual deadline, project dates, estimates and development periods provided by Zen are estimates. Zen will make reasonable efforts to meet agreed timelines, but will not be responsible for delays caused by Client decisions, delayed approvals, unavailable information or access, changes in requirements, third-party systems, dependencies, force majeure events or other circumstances outside Zen's reasonable control.

The Client may request changes to an agreed scope. A change that materially affects the functionality, workload, technical requirements, infrastructure, security requirements, risk or delivery schedule may require a revised quotation, timeline or Project Agreement. Zen is not required to perform material work outside the agreed scope without agreement on the applicable commercial terms.

Where the Project Agreement provides acceptance criteria, the Client must review the relevant Deliverable within the agreed review period and notify Zen of any material failure to satisfy those criteria, identifying the relevant issue with reasonable detail. Zen will have a reasonable opportunity to correct defects that fall within the agreed scope.

A Deliverable will be considered accepted if the Client expressly accepts it, materially uses it for its intended purpose without raising a material objection, or does not raise a qualifying objection within the applicable review period.

3. Client Responsibilities

Zen's ability to perform the Services depends on the Client providing timely cooperation. The Client is responsible for providing accurate requirements, content, information, credentials, system access, approvals, decisions and other materials reasonably required for the engagement.

The Client represents that it has the necessary rights, permissions and authority to provide materials, information, data and instructions to Zen and authorizes Zen to use them as reasonably necessary to perform the Services.

The Client remains responsible for its own business operations, products, services, content, instructions and legal obligations. Zen does not assume responsibility for determining whether the Client's business model, processes, content or use of a Deliverable complies with laws or regulations applicable to the Client.

Zen will not be responsible for delays, defects, security incidents or other failures to the extent caused by inaccurate Client information, unavailable Client systems, delayed approvals, Client-controlled infrastructure, unauthorized modifications, third-party systems under the Client's control, or other circumstances materially attributable to the Client.

The Client is responsible for maintaining appropriate access controls for accounts and systems under its control and must promptly notify Zen if it reasonably suspects that credentials or access have been compromised.

4. Plans, Subscriptions and Ongoing Services

Where the Client subscribes to an ongoing plan, the subscription provides access to the Services expressly included in the applicable Project Agreement for the relevant billing period.

Zen's ongoing plans are intended to provide continuing development, hosting, monitoring and maintenance rather than unlimited development without regard to scope or available capacity.

The amount and type of work included in a plan will depend on the applicable Project Agreement and the Client's selected plan.

Where the applicable plan includes ongoing changes or improvements, those changes remain subject to reasonable technical feasibility, the agreed scope of the plan and Zen's available development capacity. Major new products, substantial rebuilds, material architectural changes or work outside the agreed plan may be quoted separately.

Hosting, monitoring, backups, security patches and bug fixes are included only to the extent stated in the applicable Project Agreement.

A "bug fix" means correction of a reproducible defect in software developed or materially modified by Zen that causes the software not to perform substantially in accordance with its agreed specification. Changes resulting from new requirements, Client modifications, third-party changes, misuse, unsupported environments or circumstances outside Zen's control may constitute additional work.

5. Fees, Billing and Payment

Fees, billing frequency, payment dates and included Services will be established in the applicable Project Agreement or invoice. Unless expressly stated otherwise, fees are exclusive of applicable taxes, duties, government charges and similar amounts imposed by an authority.

For recurring Services, the Client agrees to pay the applicable recurring fee for each billing period. Unless a different arrangement is stated in the Project Agreement, either party may terminate a monthly recurring engagement by providing one month's written notice.

The Client remains responsible for fees accrued before termination and for non-cancellable third-party commitments or other charges properly incurred in providing the Services.

If an invoice becomes overdue, Zen may provide written notice and a reasonable grace period. If the overdue amount remains unpaid after the applicable grace period, Zen may suspend discretionary Services, development, hosting or access to hosted Services to the extent reasonably necessary and legally permitted.

Zen will not intentionally destroy Client Data merely because an invoice is overdue. Any suspension or termination involving hosted systems will be handled subject to the transition and data-retention provisions of these Terms and the applicable Project Agreement.

A payment dispute should be raised promptly and with reasonable detail. The Client remains responsible for undisputed amounts while a genuine dispute concerning another amount is being resolved.

6. Hosting, Infrastructure and Third-Party Services

Where hosting is included, Zen may select and manage infrastructure reasonably appropriate for the Services. Zen may use third-party cloud providers, hosting providers, databases, content-delivery networks, security services, email providers, APIs, artificial-intelligence services and other infrastructure or software.

Ordinary infrastructure costs reasonably contemplated when a project is scoped may be included in the Client's agreed fee. Zen is not required to indefinitely absorb extraordinary or abnormal third-party usage. Where traffic, storage, bandwidth, API calls, AI usage, email volume or other consumption materially exceeds what was reasonably contemplated by the agreed plan, Zen may propose an adjustment to the plan, infrastructure or applicable fees.

Third-party services remain subject to the terms and policies of their respective providers. Zen does not control and therefore does not guarantee the continued availability, pricing, functionality, security or compatibility of third-party services.

Monitoring, backups and recovery measures are intended to reduce operational risk but do not constitute a guarantee that downtime, data loss, corruption, security incidents or other failures will never occur.

Where a third-party provider changes or discontinues a service, imposes new technical requirements, materially changes pricing, or becomes unavailable, Zen may use a reasonable alternative or propose a corresponding change to the Services.

7. Intellectual Property

Intellectual Property Rights will be determined **on a project-by-project basis**.

The applicable Project Agreement will specify, where relevant, whether particular Deliverables are owned by the Client, owned by Zen and licensed to the Client, jointly owned, subject to a limited licence, or governed by another arrangement agreed between the parties.

No transfer or assignment of Intellectual Property Rights is implied merely because Zen has designed, developed, hosted or delivered software for the Client. Where the parties agree to transfer or assign particular rights to the Client, the applicable Project Agreement will identify the relevant Deliverables and the conditions of that transfer. Unless otherwise agreed, any transfer or assignment is conditional upon payment in full of the amounts relating to the relevant Deliverables.

Regardless of the ownership arrangement agreed for a particular project, Zen retains ownership of technology, code, libraries, frameworks, templates, tools, utilities, deployment methods, development systems, methodologies, know-how, concepts, techniques, reusable components and other materials that Zen owned, developed or acquired independently of the Client's project ("Zen Materials").

The incorporation of Zen Materials into a Client project does not by itself transfer ownership of those materials. Where the Client is entitled to use a Deliverable containing Zen Materials, Zen grants the Client the licence reasonably necessary to use the Deliverable for the purpose agreed in the Project Agreement, subject to any project-specific licence terms.

The Client retains ownership of materials, content, data and other Intellectual Property Rights supplied by the Client ("Client Materials"). The Client grants Zen a limited, non-exclusive right to use Client Materials to the extent reasonably necessary to provide the Services.

Open-source software and third-party components remain subject to their applicable licences. Zen does not transfer ownership of third-party Intellectual Property Rights that it does not own.

Zen may continue to use general technical knowledge, skills, ideas, concepts, methodologies and experience acquired while performing Services, provided that Zen does not knowingly disclose or misuse the Client's Confidential Information or reproduce the Client's protected proprietary materials for another client.

8. Confidentiality and Data Protection

Each party will use reasonable care to protect Confidential Information received from the other party and will use such information only for purposes connected with the relevant engagement.

Confidential Information does not include information that becomes publicly available without breach of an obligation, was lawfully known before disclosure, is independently developed without use of the other party's Confidential Information, is lawfully obtained from another source without a confidentiality obligation, or must be disclosed by law or lawful authority.

The Client is responsible for determining what Personal Data it provides to Zen and for ensuring that it has an appropriate legal basis and the necessary rights, permissions and notices for the relevant processing.

Where Zen processes Personal Data on behalf of the Client, the parties will enter into a Data Processing Agreement where required by applicable law. The DPA will supplement these Terms and establish the parties' respective responsibilities for the relevant processing.

Depending on the engagement, Client Data may be processed or stored using infrastructure and service providers located in jurisdictions other than the Client's jurisdiction. Where applicable law requires particular safeguards for international transfers or processing activities, the parties will cooperate in good faith to implement the safeguards required for the relevant engagement.

Zen will apply reasonable technical and organizational measures appropriate to the nature of the Services under Zen's control. Specific security requirements may be agreed in the Project Agreement or DPA.

Zen may use AI-assisted development tools for coding, debugging, research, prototyping, testing and related internal engineering activities. Where an AI service forms part of a Client-facing product, the applicable Project Agreement may identify the relevant service, data handling arrangements, usage limitations and additional costs.

Zen will not intentionally submit Client Confidential Information or Personal Data to an AI provider for the provider's model training where Zen has expressly agreed that such submission will not occur. Where a Client requires specific restrictions on AI processing, those restrictions should be documented in the applicable Project Agreement or DPA.

Nothing in these Terms is intended to exclude or restrict mandatory data-protection rights or obligations that cannot legally be excluded or restricted.

9. Security and Acceptable Use

The Client must not use the Services to violate applicable law, infringe third-party rights, distribute malicious software, obtain unauthorized access, attack or disrupt systems, circumvent security controls, conduct unlawful surveillance, facilitate cyber abuse, or otherwise create a serious and unreasonable security risk.

If Zen reasonably believes that a Service is being used in a manner that creates a serious security threat, facilitates unlawful activity, exposes Zen or another person to material legal risk, or creates an immediate risk of significant harm, Zen may take reasonable protective measures, including restricting, isolating or temporarily suspending the affected Service.

Where reasonably practicable and legally permitted, Zen will notify the Client and provide an opportunity to address the relevant issue. Nothing prevents Zen from taking immediate action where delay could materially increase the relevant risk.

Zen may refuse or discontinue work involving illegal, unsafe, highly regulated or unusually risky activities where the parties have not agreed appropriate safeguards and responsibilities in writing.

10. Warranties and Disclaimers

Zen will perform the Services with reasonable professional skill and care.

Except for warranties expressly stated in a Project Agreement and to the extent permitted by applicable law, Zen does not warrant that software will be completely free from defects, that every defect will be identified before deployment, that the Services will be uninterrupted, that third-party systems will remain available, or that a product will achieve any particular commercial, financial, operational or business result.

Zen does not guarantee increases in revenue, sales, customer acquisition, search-engine rankings, downloads, conversion rates, cost savings or other commercial outcomes resulting from the Services.

Zen provides technology services and does not provide legal, medical, financial, accounting, regulatory or other professional advice. Where software is used in a regulated industry or supports a regulated activity, the Client remains responsible for determining and maintaining its own legal and regulatory compliance.

AI-generated or AI-assisted outputs may contain errors, omissions or inaccuracies. Where AI functionality is incorporated into a product, the Client remains responsible for determining whether the output is appropriate for its particular use unless the Project Agreement expressly provides otherwise.

The Client acknowledges that software may depend upon operating systems, browsers, devices, networks, APIs and other technologies outside Zen's control.

11. Liability and Indemnity

The parties may agree to project-specific liability limits, exclusions, warranties or indemnities in the applicable Project Agreement. Where they do so, those provisions will govern the relevant engagement.

If no project-specific liability cap has been agreed, Zen's aggregate liability arising out of or relating to the relevant Services will, to the extent permitted by applicable law, be limited to the total fees actually paid to Zen for those Services during the twelve months immediately preceding the event giving rise to the claim.

To the extent permitted by applicable law, neither party will be liable for indirect, incidental, special, exemplary or consequential loss, or for loss of profits, revenue, anticipated savings, goodwill, reputation, business opportunity or data arising from the engagement.

The limitations in this section apply to the maximum extent permitted by applicable law and do not exclude or limit liability that cannot lawfully be excluded or limited, including liability arising from fraud or deliberate misconduct where applicable law prohibits such limitation.

The Client is responsible for third-party claims arising from Client Materials or instructions where the Client did not have the necessary rights, authority or legal basis to provide them, except to the extent the claim resulted from Zen's independent breach of its obligations.

Neither party assumes an indemnity obligation beyond what is expressly stated in these Terms or the applicable Project Agreement.

12. Termination and Transition

A Client may terminate an ongoing engagement in accordance with the notice period stated in the Project Agreement. Where no different period is stated, a monthly recurring engagement may be terminated by either party on one month's written notice.

Zen may terminate or suspend an engagement where the Client materially breaches the applicable agreement, fails to pay amounts due following the applicable notice and grace period, engages in unlawful or malicious activity, materially obstructs performance, or creates a serious legal, security or safety risk.

Where a breach can reasonably be remedied, the affected party will ordinarily be given a reasonable opportunity to remedy it before termination unless immediate action is reasonably justified by the circumstances.

Termination does not affect rights or obligations accrued before the effective termination date.

Where the Client has paid for Deliverables or is otherwise contractually entitled to receive them, Zen will provide the agreed handover materials subject to the terms of the Project Agreement and payment of amounts properly due.

Unless expressly included in the Project Agreement, migration, infrastructure transfer, extensive transition assistance, additional documentation and post-termination engineering support are not included in the standard handover and may be charged separately.

Following termination of hosted Services, Zen may cease hosting after the applicable transition period. Zen may retain information for as long as reasonably necessary to complete a transition, comply with legal obligations, maintain accounting and tax records, resolve disputes, protect legal rights, prevent fraud or maintain necessary security records. Thereafter, information will be deleted, anonymized or otherwise handled in accordance with the applicable Project Agreement, DPA and applicable law.

13. Disputes and Applicable Law

The parties will first attempt in good faith to resolve any dispute through direct communication between appropriate representatives.

The governing law and dispute forum for an engagement may be expressly agreed in the applicable Project Agreement. Where the parties have agreed a particular governing law and competent courts, that agreement will apply subject to mandatory law.

For engagements where no different governing law or dispute forum has been expressly agreed, the applicable governing law and competent courts will be determined in accordance with the mandatory rules and conflict-of-law principles applicable to the engagement.

Nothing in this section prevents either party from seeking urgent interim or injunctive relief where reasonably necessary to protect Confidential Information, Intellectual Property Rights, Personal Data, systems or other legally protected interests.

Where the Client is a consumer, mandatory consumer-protection laws may provide rights concerning governing law, jurisdiction, cancellation, warranties, refunds or dispute resolution that cannot legally be waived. Those rights remain unaffected.

14. General

Zen and the Client are independent contractors. Nothing in these Terms creates a partnership, joint venture, employment relationship, franchise, fiduciary relationship or agency relationship between the parties.

Zen may use employees, contractors and third-party service providers to perform the Services. Zen remains responsible for the Services it has expressly agreed to provide, subject to the applicable Project Agreement and these Terms.

Neither party will be liable for delay or failure caused by circumstances reasonably beyond its control, including natural disasters, war, civil unrest, government action, major infrastructure failures, widespread cyber incidents, telecommunications failures, internet outages and failures or interruptions of third-party infrastructure.

A party's failure to enforce a provision does not waive its right to enforce that provision later. If a provision is held to be invalid or unenforceable, it will be modified or limited to the minimum extent necessary to make it enforceable where legally permitted, and the remaining provisions will continue in effect.

The Client may not assign a Project Agreement where doing so would materially change Zen's obligations or materially increase Zen's risk without Zen's prior written consent, except where such restriction is prohibited by applicable law. Zen may assign an agreement in connection with a restructuring, incorporation, merger, acquisition, sale of the relevant business or substantially all of its assets, subject to applicable law.

Neither party may use the other party's name, logo or trademarks in a manner suggesting endorsement without permission. Zen may identify a Client as a customer or display non-confidential project information in its portfolio only where the Client has agreed to such use or the relevant information is already publicly available, subject to any confidentiality obligations.

These Terms, together with the applicable Project Agreement and documents expressly incorporated into it, constitute the agreement between the parties concerning the relevant Services and supersede prior discussions concerning the same subject matter. Any separately negotiated Project Agreement will prevail over these general Terms to the extent of any inconsistency.

Provisions concerning payment, Intellectual Property Rights, confidentiality, data protection, liability, dispute resolution and any other provisions which by their nature are intended to survive termination will continue after termination.

The parties may enter into agreements electronically. Electronic signatures, written electronic acceptance, payment following acceptance, or other legally valid electronic acts may establish acceptance of an agreement to the extent permitted by applicable law.

Zen may update these website Terms from time to time. The version incorporated into an existing Project Agreement will continue to govern that engagement unless the parties expressly agree otherwise. Updated Terms will generally apply to new engagements from their stated effective date.

15. Contact

Questions concerning these Terms or Zen's Services may be directed to:

Zen Consulting

Pune, Maharashtra, India

Email: hello@zenconsulting.dev

Website: <https://zen-consulting.co/>

